

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 17, 2026 AT 8:30 A.M.**

24. S-CV-0057114 STARK, COLIN v. TESLA, INC

NOTE: If oral argument is requested in this case, it shall be heard on JULY 17, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant's Motion to Compel Arbitration

The motion is granted. In the current request, defendant seeks to compel plaintiff to participate in arbitration pursuant to both the Federal Arbitration Act (FAA) and the California Arbitration Act (CAA), asserting the Motor Vehicle Order Agreement entered into by the parties includes a valid arbitration provision. Plaintiff does not dispute the existence or validity of the arbitration agreement. Plaintiff's sole dispute is in regards to the enforceability of the agreement. Specifically, plaintiff contends that the arbitration agreement is both procedural and substantively unconscionable.

The party opposing the motion bears the burden of proving, by preponderance of the evidence, those facts necessary to support the asserted defense. (*Gamboa v. Northeast Comm. Clinic* (2021) 72 Cal.App.5th 158, 164-165.) Unconscionability is also a defense that may be asserted by the plaintiff under the FAA. (*Sonic-Calabasas A, Inc. v. Moreno* (2013) 57 Cal.4th 1109, 1142-1143.) The plaintiff must establish the existence of both procedural - the manner in which the contract was negotiated - and substantive - the concerns that the contract terms are unreasonably one-sided - unconscionability. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125-126.) The unconscionability showing is evaluated on a sliding scale: the more substantive unconscionability in the contract the less procedural unconscionability is required and visa versa. (*Gurganus v. IGS Solutions LLC* (2025) 115 Cal.App.5th 327, 334.) Here, plaintiff does not make a sufficient showing of either procedural or substantive unconscionability so as to prevent enforcement of the arbitration provision. In light of this, the motion is granted in its entirety.

The current action is stayed pending completion of arbitration. (Code of Civil Procedure section 1281.4; 9 U.S.C.A. section 3.)

The case management conference set for August 14, 2026 at 9:00 a.m. in Department 1 is vacated.

An OSC re status of arbitration is set for Friday, February 5, 2027 at 9:00 a.m. in Department 1.